
DISSENT

NALBANDIAN, Circuit Judge, dissenting. The Ohio Department of Rehabilitation and Correction (ODRC) has a three-step grievance process. Our precedent says that even if Lamb was ultimately prevented from exhausting his administrative remedies, he had to show that he made some affirmative efforts to comply with ODRC's grievance process that were sufficient under the circumstances. In my view, Lamb's affirmative efforts weren't. So I would affirm the district court's judgment.

I.

The majority and I agree on the basic framework for an exhaustion defense in a Prison Litigation Reform Act (PLRA) case. To recap, the rules of the road are: (1) A prisoner can generally only bring a PLRA action in federal court after exhausting his administrative remedies; (2) Exhaustion means that a prisoner has followed the state's grievance process before filing in state court; (3) When a prisoner fails to exhaust, the defendants can raise that failure as an affirmative defense under the PLRA; (4) If the defendants raise an exhaustion affirmative defense, it's their burden to show that a prisoner failed to exhaust; and (5) At times, we excuse exhaustion, like when the defendants were the ones who prevented the plaintiff from exhausting his administrative remedies. *See Surles v. Anderson*, 678 F.3d 452, 455–57 & n.10 (6th Cir. 2012) (citations omitted). So far, so good.

The tricky part of this analysis, especially at summary judgment, relates to step (4)—namely, understanding the defendant's burden on a failure-to-exhaust affirmative defense on summary judgment. We've said that on summary judgment the defendants "must show that the record contains evidence satisfying their burden of persuasion [on the exhaustion defense] and that no reasonable jury would be free to disbelieve it." *Does 8–10 v. Snyder*, 945 F.3d 951, 961 (6th Cir. 2019) (altered) (internal citation and quotation marks omitted). And that makes sense. If we're going to cut the plaintiff's case off at the summary judgment stage based on an affirmative defense, it stands to reason that the defendants must show not only that "no genuine

dispute” of material fact exists but also that they *would win* on an exhaustion defense at trial. *Id.* (quoting Fed. R. Civ. P. 56(a)).

Our circuit has a burden-shifting analysis that goes like this. Once the defendants have raised an affirmative defense of failure to exhaust, we analyze whether the plaintiff has “contend[ed] that he was prevented from exhausting his [administrative] remedies” *Surles*, 678 F.3d at 457 n.10. If a plaintiff has “allege[d]” that the defendants somehow blocked his access to administrative remedies, *id.*, we then require a plaintiff to produce *evidence* that he made “affirmative efforts to comply with the administrative procedures” nonetheless, *Lee v. Willey*, 789 F.3d 673, 676–77 (6th Cir. 2015) (quoting *Napier v. Laurel County*, 636 F.3d 218, 223 (6th Cir. 2011)); *Napier*, 636 F.3d at 224 (“We are not requiring that a prisoner utilize every conceivable channel to grieve their case, but even when a policy is vague, a prisoner must do what is required by the grievance policy.”).

If the plaintiff contended that administrative remedies were unavailable *and* produced evidence that he made affirmative efforts to comply with the grievance process, the burden shifts back to the defendants, who must “show that [they] did not interfere with a plaintiff’s ability to exhaust his administrative remedies.” *Surles*, 678 F.3d at 457 n.10. If the defendant meets that burden, the plaintiff then must “rebut” that evidence with evidence that those administrative remedies were in fact unavailable to him. *Napier*, 636 F.3d at 226. Then, it’s the district court’s call as to whether the defendants proved their exhaustion affirmative defense by the preponderance of the evidence. *See Lee*, 789 F.3d at 677.

The majority says that we have not adopted a burden-shifting approach to the exhaustion affirmative defense under the PLRA. (Majority Op. at 10.) But I don’t think that’s right. After the defendants provide evidence that the plaintiff has failed to exhaust, the plaintiff must provide evidence that he took “affirmative efforts” to comply with administrative procedures, even if he didn’t use them. *Lee*, 789 F.3d at 677. And that seems like a burden shift to me.

II.

Although we differ in our characterization of the exhaustion framework under the PLRA, the majority and I both agree that it requires that the plaintiff show that he took affirmative

efforts to comply with the grievance process. (See Majority Op. at 11–13, 15.) I disagree with the majority that Lamb’s affirmative efforts were sufficient here.

We look at a state’s grievance procedure to determine whether a plaintiff took sufficient affirmative steps under the circumstances. If Lamb establishes affirmative efforts through his presentation of the evidence, we look at the defendants’ evidence to see if there is a genuine dispute of material fact on whether the affirmative acts were sufficient.

The ODRC grievance process has three steps. See Ohio Admin. Code 5120-9-31(J)(1–3). First, the inmate must submit an informal complaint to a supervisor within fourteen days of the event that gave rise to the complaint. *Id.* 5120-9-31(J)(1). Prison staff then must issue a response in seven days or alternatively waive that response. *Id.* If the state does not respond after the seven days, the Inspector of Institutional Services may grant an additional four calendar days for response. *Id.* So added up, if eleven days have passed from the date of the filing of the informal complaint, the state is considered to have waived a response. *Id.* Second, if the inmate doesn’t agree with the prison staff’s response or the state has waived, he can file a formal complaint with the Inspector of Institutional Services. *Id.* 5120-9-31(J)(2). An inmate must file this formal complaint within fourteen days of receiving the resolution of (or no response to) his informal complaint. *Id.* The Inspector of Institutional Services has fourteen days from receipt of the formal complaint to respond or waives a response after twenty-eight days. *Id.* Then, under the third step of the grievance process, if the plaintiff is still dissatisfied, he can file an appeal to the ODRC Office of the Chief Inspector within fourteen days of the resolution or waiver of the formal complaint. *Id.* 5120-9-31(J)(3). And the ODRC Office of the Chief Inspector must respond within thirty days of receiving that appeal. *Id.*

Here, Lamb exerted no affirmative efforts on step two of the grievance process. Lamb explains that he submitted his first informal complaint on April 9, 2018, and a second informal complaint on an unspecified date, also in April 2018. Because the incident occurred on April 6, 2018, Lamb could have theoretically filed his second (or any) informal complaint all the way up to April 20, 2018, fourteen days after the incident occurred. Then, the prison staff would have theoretically had eleven days to waive a response, creating a May 1, 2018 waiver deadline.

And, in turn, Lamb would have had fourteen days from the waiver deadline to file a formal complaint. That would have given Lamb a May 15, 2018 deadline to file his formal complaint.

But the record reflects that in the over four years since the incident giving rise to this lawsuit occurred Lamb never filed a formal complaint under step two of the ODRC grievance process. In other words, he took *no* affirmative steps on this front. He gives several reasons why that's so. He says he was transferred to restrictive housing at Lebanon Correctional Institution the day after the incident occurred and he didn't have access to the online grievance portal or ODRC policy manual there. He says that after he had been at Lebanon Correctional Institution "for some time and received no response from ODRC" he "began asking correctional officers for grievance forms so that" he could "appeal ODRC's lack of response." (R. 19-2, Lamb Affidavit, at 3.) He says that one of the prison officials "told [him] that it would be a waste of time [to appeal] because the time had already passed for [him] to submit an appeal, and because the prison did not have any forms." (*Id.* at 4.) He says that no correctional staff gave him the grievance forms when he asked because they said the forms were unavailable. These contentions all go to the ultimate question of whether Lamb was prevented from exhausting his administrative remedies. But they don't solve the affirmative efforts problem that he never says anywhere in his affidavit that he ever tried to file a formal complaint in compliance with step two.

So we're left with the fact that he filed an informal complaint. He didn't receive a response. He didn't file a formal complaint. So he didn't make affirmative efforts to follow ODRC grievance procedure. See Ohio Admin. Code 5120-9-31(J)(2).

Further, his affidavit never specifies the months and years when he asked for any forms from the officers to establish that he had tried to comply with the mandatory grievance timeline. His allegations are vague and not time-specific, spanning the course of over two years, not at all tied to the filing of a formal complaint.

The statements in his affidavit don't show that he did his part in complying with the policy. He never showed that he tried to follow step two but admits that he received the grievance policy when he arrived at the prison in 2017. That policy explained the grievance

process deadlines. “[A] prisoner must do what is required by the grievance policy” even when a prisoner is not able to “utilize every conceivable channel to grieve their case.” *Napier*, 636 F.3d at 224. And Lamb’s affidavit didn’t establish that he did what was required.

Even when he asked for forms from different prison officials, it was so that he could appeal his case, the third step of the grievance process, not so that he could file a formal complaint under step two. In my view, the filing of a single (or maybe two) informal complaints is not the kind of affirmative effort that is sufficient under a three-step grievance process with a tight timeline.

Lamb may have in the end been prevented from complying with step two, but he could have shown that he tried to comply by asking for forms within the relevant time window under the grievance procedure. *See Risher v. Lappin*, 639 F.3d 236, 240 (6th Cir. 2011) (explaining that when an inmate does “not attempt to bypass the administrative grievance process” and instead “affirmatively endeavor[s] to comply with it,” a plaintiff has shown affirmative efforts). In this case, Lamb didn’t.

III.

As a final matter, I’d like to address a point the majority touched on. Our circuit has departed from other circuits in how we approach the burden-shifting analysis for exhaustion. And I think that was an error on our part. All the circuits agree, as they must per the Supreme Court, that the defendants have the ultimate burden of persuasion to establish an exhaustion affirmative defense under the PLRA at the summary judgment phase. *See Jones v. Bock*, 549 U.S. 199, 212 (2007). Where the circuits disagree is when the burden of production shifts to the plaintiff within that analysis.

I’ve catalogued our approach above. But there’s another way, the path several other circuits take. Under their view, the initial burden is on the defendants to establish that a grievance process exists that would have been generally available to people in the plaintiff’s position. *See Mojias v. Johnson*, 351 F.3d 606, 609–10 (2d Cir. 2003). If the defendants establish this, then the burden of production shifts to the plaintiff to establish by evidence that, although a grievance process was available on paper, it still was unavailable in practice because

of other factors, like harassment or threats or abuse from officers. *See Albino v. Baca*, 747 F.3d 1162, 1172 (9th Cir. 2014) (en banc). And from this evidence, and any other evidence provided by the defendants, other circuits hold, the district court must determine whether the defendants met their ultimate burden of proof. *See, e.g., Tuckel v. Grover*, 660 F.3d 1249, 1254 (10th Cir. 2011).

There is a key distinction between that approach and our current one. We put the entire burden on the *defendants* to prove that they did not hinder an inmate’s exhaustion of administrative remedies, albeit after the plaintiff shows his affirmative efforts to take advantage of the remedies. Other circuits put a burden of production on the *plaintiff* to show that the defendants prevented him from exhausting his administrative remedies. In my view, our approach is problematic because we ultimately require defendants to prove the negative: that they did not hinder an inmate’s ability use the grievance process. *See Piedmont & Arlington Life Ins. v. Ewing*, 92 U.S. 377, 378 (1875) (“While it may be easy enough to prove the affirmative . . . it is next to impossible to prove the negative.”); *Boykin v. Fam. Dollar Stores of Mich., LLC*, 3 F.4th 832, 842 (6th Cir. 2021) (“The summary judgment standard does not require [a party] to prove a negative.” (quotation omitted)).

The text of the PLRA and common sense support my view that the other circuits got this one right. If we instead required a plaintiff to provide evidence at summary judgment that he was prevented from complying with the grievance process, he could point to concrete actions of the defendants that led to his inability to exhaust. The plaintiff in that situation would only have to prove a positive—some external circumstance made administrative remedies unavailable—that is statutorily baked into the PLRA. *See Ross v. Blake*, 578 U.S. 632, 642 (2016) (explaining that the only “textual exception to mandatory exhaustion” is when administrative remedies are “unavailable”).

In enacting the PLRA, Congress “invigorated” the requirement that a plaintiff “must exhaust available remedies” under 42 U.S.C. § 1997e(a). *Id.* at 641–42 (quotation omitted). We expect plaintiffs to exhaust, and when they don’t, Congress said they typically don’t have a remedy in federal court. So it stands to reason that if they failed to exhaust administrative remedies, they’d be the ones who would need to explain why the remedies were unavailable.

And the Supreme Court seems to have implicitly approved of that approach. See *Ross*, 578 U.S. at 648 (remanding for consideration of the *plaintiff's* argument that remedies were unavailable to him after defendants established that plaintiff had not exhausted).¹

As a beneficial side effect, adopting the other circuits' approach would eliminate our odd, initial inquiry into whether a plaintiff has made "affirmative efforts" to comply with the grievance process that are "sufficient under the circumstances" *Napier*, 636 F.3d at 223–24 (quotation omitted). We've never really explained what that standard means. It's opaque at least. And it doesn't contemplate that a plaintiff may be unable to take affirmative efforts *at all* because of threats, intimidation, or fear of other officers.

IV.

For these reasons, I would adopt the approach of other circuits in the burden-shifting analysis if this were a matter of first impression. But, because I don't write on a blank slate, I acknowledge that our circuit has already set the standard we must apply in this case. In doing so, I don't think Lamb's affirmative efforts were sufficient under the circumstances. So I respectfully dissent.

¹And, in general, burden shifting for affirmative defenses usually requires the plaintiff to prove something responsive to the defendants' initial burden. See, e.g., *Adickes v. S. H. Kress & Co.*, 398 U.S. 144, 156–57 (1970) (burden shifting in the summary judgment context adopting that approach); *T.S. v. Doe*, 742 F.3d 632, 635 (6th Cir. 2014) (burden shifting in the qualified immunity context adopting that approach); *Campbell v. Grand Trunk W. R.R. Co.*, 238 F.3d 772, 775 (6th Cir. 2001) (burden shifting in the statute of limitations context adopting that approach).